

PART – II

SUSPENSION

4. **Authorities competent to place a Railway servant under suspension** - The classes of Railway servants who may be placed under suspension and the authorities by whom they may be so placed, shall be as specified in Schedules I, II and III:

Provided that, in exceptional circumstances, any authority specified in any of the Schedules may place any subordinate Railway servant specified therein, under suspension:

Provided further that where any action is taken under the foregoing proviso, the authority concerned shall forthwith report to the authority competent to place such Railway servant under suspension, the circumstances in which the order was made and obtain his approval.

Explanation - For the purposes of this rule, in respect of a Railway servant officiating in a higher post, the competent authority shall be determined with reference to the officiating post held by such Railway servant at the time of taking action.

5. **Suspension** -

(1) A Railway servant may be placed under suspension -

- (a) where a disciplinary proceeding against him is contemplated or is pending; or
- (b) where, in the opinion of the authority competent to place a Railway servant under suspension, he has engaged himself in activities prejudicial to the interest of the security of the state; or
- (c) where a case against him in respect of any criminal offence, is under investigation, inquiry or trial.

(2) A Railway servant shall be deemed to have been placed under suspension by an order of the competent authority -

- (a) with effect from the date of his detention, if he is detained in custody, whether on a criminal charge or otherwise, for a period exceeding forty-eight hours;
- (b) with effect from the date of his conviction, if in the event of a conviction for an offence, he is sentenced to a term of imprisonment exceeding forty-eight hours and is not forthwith dismissed or removed or compulsorily retired consequent to such conviction.

Explanation - The period of forty-eight hours referred to in clause (b) of this sub-rule, shall be computed from the commencement of the imprisonment after the conviction and for this purpose, intermittent periods of imprisonment, if any, shall be taken into account.

(3) Where a penalty of dismissal, removal or compulsory retirement from service imposed upon a Railway servant under suspension, is set aside in appeal or on revision under these rules and the case is remitted for further inquiry or action or with any other directions, the order of his suspension shall be deemed to have continued in force on and from the date of the original order of dismissal, removal or compulsory retirement and shall remain in force until further orders.

(4) Where a penalty of dismissal, removal or compulsory retirement from service imposed upon a Railway servant, is set aside or declared or rendered void in consequence of or by a decision of a court of law and the disciplinary authority on consideration of the circumstances of the case, decides to hold a further inquiry against him on the allegations on which the penalty of dismissal, removal or compulsory retirement, was originally imposed, the Railway servant shall be deemed to have been placed under suspension by the competent authority from the date of the original order of dismissal, removal or compulsory retirement and shall continue to remain under suspension until further orders:

Provided that no such further inquiry shall be ordered unless it is intended to meet a situation where the court has passed an order purely on technical grounds without going into the merits of the case.

- (5) (a) An order of suspension made or deemed to have been made under this rule, shall continue to remain in force until it is modified or revoked by the authority competent to do so.
- (b) Where a Railway servant is suspended or is deemed to have been suspended (whether in connection with any disciplinary proceeding or otherwise) and any other disciplinary proceeding is commenced against him during the continuance of that suspension, the authority competent to place him under suspension may, for reasons to be recorded by him in writing, direct that the Railway servant shall continue to be under suspension until the termination of all or any of such proceedings.
- (c) An order of suspension made or deemed to have been made under this rule, may, at any time, be modified or revoked by the authority which made or is deemed to have made the order or by any authority to which that authority is subordinate.
- (6) Notwithstanding anything contained in sub-rule 5, an order of suspension made or deemed to have been made under sub-rule (1) or sub-rule (2) of this rule shall not be valid after a period of ninety days unless it is extended after review in the manner provided in sub-rule (7) of this rule, for a further period before expiry of ninety days.
- (7) The review of an order of suspension shall be done by the authority which is competent to modify or revoke the suspension, on the recommendation of the review committee constituted for the purpose, and such competent authority shall pass orders either extending or revoking the suspension before expiry of ninety days from the date of order of suspension. Subsequent reviews shall be made before expiry of the extended period of suspension. Extension of suspension shall not be for a period exceeding one hundred and eighty days at a time.

PART - III

PENALTIES AND DISCIPLINARY AUTHORITIES

6. **Penalties** : The following penalties may, for good and sufficient reasons and as hereinafter provided, be imposed on a Railway servant, namely:-

Minor Penalties -

- (i) Censure;
- (ii) Withholding of his promotion for a specified period;